

**SUBSTITUTE FOR
HOUSE BILL NO. 4779**

A bill to amend 1978 PA 368, entitled
"Public health code,"
(MCL 333.1101 to 333.25211) by adding section 20187.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 20187. (1) Beginning 1 year after the effective date of**
2 **the amendatory act that added this section, a health facility or**
3 **agency that provides a surgical procedure using heat-producing**
4 **equipment that is likely to generate surgical smoke plume shall**
5 **develop and implement a policy that requires the use of a surgical**
6 **smoke plume evacuation system during a procedure described in this**
7 **subsection.**

8 **(2) As used in this section:**

9 **(a) "Surgical procedure using heat-producing equipment" means**



1 any of the following:

2 (i) A procedure that uses an electric current to cut, remove,
3 or destroy tissue and control bleeding.

4 (ii) A procedure using a laser.

5 (iii) Any other procedure that uses heat-generating surgical
6 instruments.

7 (b) "Surgical smoke plume" means a vapor, gas, or harmful
8 particle produced as a byproduct of a surgical procedure using
9 heat-producing equipment.

10 (c) "Surgical smoke plume evacuation system" means a dedicated
11 device that is designed to capture, transport, filter, and
12 neutralize surgical smoke plume at the site of origin and before
13 surgical smoke plume can make ocular contact or contact with the
14 respiratory tract of an individual.